

FY 25 **Maintenance for Government owned Lumenis BE UltraPulse Alpha
SplendorX Stellar laser**

Control No: 25-MRCO-WEST-18

**Memorandum for Record – Limiting Competition at or below the Simplified
Acquisition Threshold**

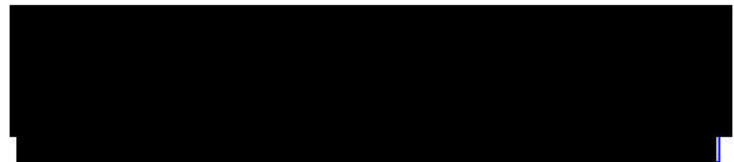
1. Contracting Activity: Medical Health Contracting Office-West, Fort Cavazos Health Contracting Branch.

2. Description of Action:Nature: ☒ New Requirement _____ Follow-on RequirementContract Vehicle: ☒ Purchase Order Number 0012266533Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐
Cost Reimbursable ☐ HybridFunds: ☐ Operations & Maintenance, Army (OMA) ☒ Other Funds: DHP
FY: 25

Name of Proposed Contractor(s) and Address:

Melling Medical
658 South Columbus Street STE 2000
Alexandria, VA 22314Brand Name Buy: ☐ Yes ☒ No

3. Description of Services: This FY25 requirement is for a new contract for Maintenance for Government own Lumenis BE UltraPulse Alpha and SplendorX Stellar laser located in Dermatology at Irwin Army Community Hospital.

Period of Performance:Base 01-June-2025 31 May 2026
Option Year 1 01 June 2026 to 31 May 2027
Option Year 2 01 June 2027 to 31 May 2028
FAR 52.217-8 01 June 2028 to 31 30 November 2028

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(Source Selection Information - See FAR 2.101 and 3.104-4)

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Total Estimated Value: [REDACTED]

BASE Total [REDACTED]

OY1 Total [REDACTED]

OY2 Total [REDACTED]

Estimated Value: [REDACTED]

Item No	Description	QTY	UNIT	UNIT PRICE	Amount
0001	Base Year: Energy Care Ultimate Plan: UltraPulse Alpha Serial Number: 30077 (Part Number: GA-2000011) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA	[REDACTED]	[REDACTED]
0002	Base Year: Energy Care Ultimate Plan: Splendor X Serial Number: SPXAY23I-062287 Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts .	01	EA	[REDACTED]	[REDACTED]
0003	Base Year: Energy Care Ultimate Plan: Stellar IPL/RFX Serial Number: SN002054 (Part Number: GA-0006200LMX) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA	[REDACTED]	[REDACTED]
				BASE Total	[REDACTED]
1001	OY1 Year: Energy Care Ultimate Plan: UltraPulse Alpha Serial Number: 30077 (Part Number: GA-2000011) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA	[REDACTED]	[REDACTED]
1002	OY1 Year: Energy Care Ultimate Plan: Splendor X Serial Number: SPXAY23I-062287 Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts .	01	EA	[REDACTED]	[REDACTED]

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1003	OY1 Year: Energy Care Ultimate Plan: Stellar IPL/RFX Serial Number: SN002054 (Part Number: GA-0006200LMX) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA		
2001	OY 2: Energy Care Ultimate Plan: UltraPulse Alpha Serial Number: 30077 (Part Number: GA-2000011) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA		
2002	OY 2: Energy Care Ultimate Plan: Splendor X Serial Number: SPXAY23I-062287 Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts .	01	EA		
2003	OY 2: Energy Care Ultimate Plan: Stellar IPL/RFX Serial Number: SN002054 (Part Number: GA-0006200LMX) Lumenis BE Ultimate Energy Care Plan includes: One (1) preventative maintenance (PM) call per year, Two (2) business day response time, All labor and travel; all spare parts.	01	EA		

4. Authority:

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

5. Reasons for Authority Cited:

The Government purchased and owns the Lumenis BE UltraPulse Alpha SplendorX Stellar equipment. Lumenis strongly discourages the use of components, spare parts, replacement parts, or laser system supplies from sources other than Lumenis or Lumenis qualified sourcing. Lumenis does not design, test, or receive regulatory market clearance or approval for our laser systems with any other manufacturer's components, spare parts, replacement parts, or laser system supplies. In addition, Lumenis does not train or provide procedures or updates to independent service technicians nor does

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Lumenis provide special tools and test fixtures required for repair or refurbishment activities except to Lumenis employees.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

X Action is NOT a brand name restriction and is under \$250K, no posting required.

7. Market Research: Market research was conducted to ascertain if this requirement can be properly classified as commercial item. The basis of research is predicated on the FAR definition of a commercial item. Specifically, the FAR states, "any item, other than real property, that is of a type customarily used by the general public or by non-governmental entities for purposes other than governmental purposes, and has been sold, leased, or licensed to the general public; or has been offered for sale, lease, or license to the general public" (see FAR 2.101-Commercial Item). Based on market research various Lumenis equipment are broadly available in the commercial industry. Lumenis equipment is provided to the general public under terms and conditions similar to those offered to the Federal Government. Based on market research IAW FAR 10.001(a)(3)(ii), this requirement meets the definition of a commercial supply in accordance with FAR 2.101.

Per FAR 19.502-2 a review for small business socioeconomic contracting programs was conducted. A search of the Small Business Administration's (SBA) Dynamic Small Business Search (DSBS) using **811210 – Electronic and Precision Equipment Repair and Maintenance**, using keyword, "BE Splendor X "

Economic Group	Number of Firms Found
<u>Service-Disabled Veteran</u>	0
<u>Currently SDB Certified</u>	0
<u>Woman or Women Owned</u>	0
<u>Currently 8(a) Certified</u>	0
<u>Veteran</u>	0
<u>Currently HUBZone Certified</u>	0

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8. Other Facts: The Government own and purchase the Lumenis BE UltraPulse Alpha SplendorX Stellar laser. Received letter to certify that Lumenis BE, Inc. hereby names Melling LLC dba Melling Medical as an Authorized Distributor of all Lumenis Lasers, associated laser accessories and Lumenis Maintenance Services. Melling LLC dba Melling Medical is a fully authorized distributor/ dealer for all Lumenis Be, Inc. Products.

9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED]

Title: [REDACTED]

Signature: [REDACTED]

10. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon price analysis.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: [REDACTED]

Title: [REDACTED]

Signature: [REDACTED]

[REDACTED]